

25CHCV01999 25CHCV01999

County: los-angeles

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PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSE TO FORM
INTERROGATORY NO. 4.1

Motion filed on May 7, 2026.

MOVING PARTY: Armen Beglaryan (Plaintiff)

RESPONDING PARTY: Tyler Miller (Defendant)

NOTICE: OK.

RELIEF REQUESTED: Order compelling Defendant to serve a
further verified response to Form Interrogatory No. 4.1 and awarding \$1,827.97
in monetary sanctions against Defendant and Robert E. Schroth Jr., Esq.
(Defense Counsel).

RULING: Granted. Sanctions granted in the reduced amount of
\$500.00.

BACKGROUND

On June 10, 2025, Plaintiff filed this action against

Defendant and others.

Plaintiff served Form Interrogatories, Set One, on September 22, 2025. (Kravchenko Decl. ¶ 2, Ex. A.) Defendant served verified responses on March 6, 2026. (Kravchenko Decl. ¶ 3, Ex. B.)

Plaintiff sent a meet and confer letter on April 17, 2026. (Kravchenko Decl. ¶ 4, Ex. C.) Counsel thereafter met and conferred by telephone. On April 20, 2026, Plaintiff confirmed in writing that Defendant's deadline to serve amended responses was extended to May 4, 2026, and Plaintiff's deadline to file a motion to compel was extended to May 18, 2026. (Kravchenko Decl. ¶ 5, Ex. D.)

Plaintiff filed this motion, the supporting declaration of Niko Kravchenko, Esq., and a separate statement on May 7, 2026. No timely opposition was filed.

DISCUSSION

Further Response to Form Interrogatory No. 4.1

A party responding to an interrogatory must provide an answer containing the information sought, exercise the option to produce writings under Code of Civil Procedure section 2030.230, or assert an objection. (Code Civ. Proc., § 2030.210, subd. (a).) An answer must be as complete and straightforward as the information reasonably available to the responding party permits. If the interrogatory cannot be answered completely, it must be answered to the extent possible. If the responding party lacks sufficient personal knowledge to respond fully, the party must so state and make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, unless the information is equally available to the propounding party. (Code Civ. Proc., § 2030.220, subds. (a)-(c).) A further response may be compelled when an answer is evasive or incomplete. (Code Civ. Proc., § 2030.300, subd. (a)(1).)

Here, Defendant answered Form Interrogatory No. 4.1 by stating that automobile liability coverage existed through the rental vehicle and identifying Dirt Cheap Car Rental as the named insured and custodian of the policy. As to the policy number, limits of coverage, and whether any reservation of rights or coverage dispute exists, Defendant responded

“unknown.” (Kravchenko Decl., Ex. B at 4-5.) Although those answers state that Defendant does not presently know the requested information, they do not indicate that Defendant made a reasonable and good faith effort to obtain it by inquiry to Dirt Cheap Car Rental or another natural person or organization, as Code of Civil Procedure section 2030.220, subdivision (c), requires. The responses are therefore incomplete.

Defendant must serve a further verified response to subparts (d), (e), and (f) after making the reasonable and good faith inquiry required by section 2030.220, subdivision (c). If any information remains unknown after that inquiry, Defendant must answer to the extent possible and state that he is unable to provide the remaining information after making the required inquiry.

Sanctions

The Court shall impose a monetary sanction against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories unless the Court finds substantial justification or other circumstances making sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

Here, Plaintiff requests \$1,827.97 based on 3.5 hours at \$500 per hour and \$77.97 in costs. (Kravchenko Decl. ¶¶ 6-7.) Sanctions are warranted but reduced. The motion concerns one interrogatory, no opposition was filed, and no reply was required. One hour at counsel's stated rate of \$500 is reasonable. Sanctions are awarded in the amount of \$500.

CONCLUSION

Plaintiff Armen Beglaryan's Motion to Compel Further Responses is granted.

Defendant Tyler Miller is ordered to serve a further verified answer to Form Interrogatory No. 4.1 within 20 days of notice of this order. The answer must comply with Code of Civil Procedure sections 2030.210, subdivision (a)(1), and 2030.220, subdivisions (a) through (c).

Plaintiff's request for monetary sanctions is granted in the reduced amount of \$500, jointly and severally against Defendant Tyler Miller and his counsel of record, payable within 30 days of notice of this order.